

		declaration (Lazar Decl. (ROA 104) ¶ 39 ("Plaintiff is entitled to a Class Representative Service Payment . . . for providing Defendant with a more expansive release of claims, including a waiver based upon California Civil Code section 1542, in exchange for the Class Representative Service Payment.")). The court preliminarily finds an enhancement award not to exceed \$5,000 reasonable in this case. <u>As to the notice:</u> 7. The notice should be revised consistent with the above. 8. In the September 25, 2025 order, the court stated that the title of the notice and throughout the document should include "and PAGA" after "class" and before "settlement." The phrase "and PAGA" should be inserted after "class action" and before "settlement" in the gray box at the top of page 1 of the notice, and after "class action" and before "litigation" in the second sentence of the paragraph immediately below the gray box. <u>As to the proposed order (ROA 140, 148):</u> 9. The proposed order should be revised consistent with the above. 10. The settlement agreement and any amendments thereto and the class notice packet (in English and Spanish) should be attached to the proposed order as exhibits, not submitted as a separate document from the proposed order. The hearing on plaintiff's motion for preliminary approval of a class action and PAGA settlement is continued to <u>February 4, 2027 at 2:00 p.m.</u> in Department CX105 to permit the parties to address and respond to the above issues. <i>See also</i> Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). A supplemental brief shall be filed at least 9 court days before the hearing and shall address as necessary each of the above points. <u>If required, an amendment to the settlement agreement is directed, rather than "amended settlement agreement," to streamline the court's review.</u> The parties shall also provide redlined copies of any revised documents. Plaintiff is ordered to provide notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended settlement documents, and file a proof of service. No earlier hearing date is available for this motion.
11	Montes v. Restoration Hardware, Inc. 2025-01534796	Off calendar.
12	Ramirez v. Golden Glass, Inc.	<u>Plaintiff's Motion for Preliminary Approval of Class Action and PAGA Settlement</u>

	2024-01421622	The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for preliminary approval of a \$542,500 class action and PAGA settlement. The court has the following questions and comments: <u>As to the settlement:</u> 1. The amendment to the settlement agreement is not signed by defendant or defendant's counsel. 2. In the April 16, 2026 order (ROA 69), the court stated that it prefers a 60-day period for the submission of exclusions, objections and disputes. The parties amended portions of the settlement agreement to address this issue, but paragraph 7.4.4 has not been amended and should be to conform with the other amendments to the settlement agreement. 3. The parties appear to have amended paragraph 5 of the settlement agreement to remove and/or change the effective date of the class and PAGA releases. The court will not require the class members and aggrieved employees to release their claims before defendant fully funds the settlement. Paragraph 5 should be revised accordingly. 4. The amendment to the settlement agreement appears to include two versions of paragraph 5.3. The settlement agreement should be amended to include only one version of paragraph 5.3. In addition, paragraph 5.3 (as amended) should not contain an ellipsis; it should state the entire release. 5. Paragraph 5.2 (as amended) should not contain an ellipsis; it should state the entire release. In addition, the following phrase should be removed from paragraph 5.2: "and all claims for liquidated damages, civil penalties, interest, fees, and costs based on the foregoing." 6. As stated in the April 16, 2026 order (ROA 69, No. 16), the last sentence of paragraph 7.8.3 of the settlement agreement should be revised. 7. In its April 16, 2026 order, the court stated that while it will not determine the amount of attorneys' fees to be awarded until final approval, the court is unlikely to approve attorneys' fees in excess of 30% of the gross settlement amount absent unique circumstances. The court stated that plaintiff's counsel should address in the supplemental filing whether any such unique circumstances exist here. The circumstances stated in the Supplemental Bokhour Declaration (ROA 74 at ¶¶ 22-24) are not unique. The court preliminarily finds attorneys' fees not to exceed \$162,750 reasonable in this case.
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